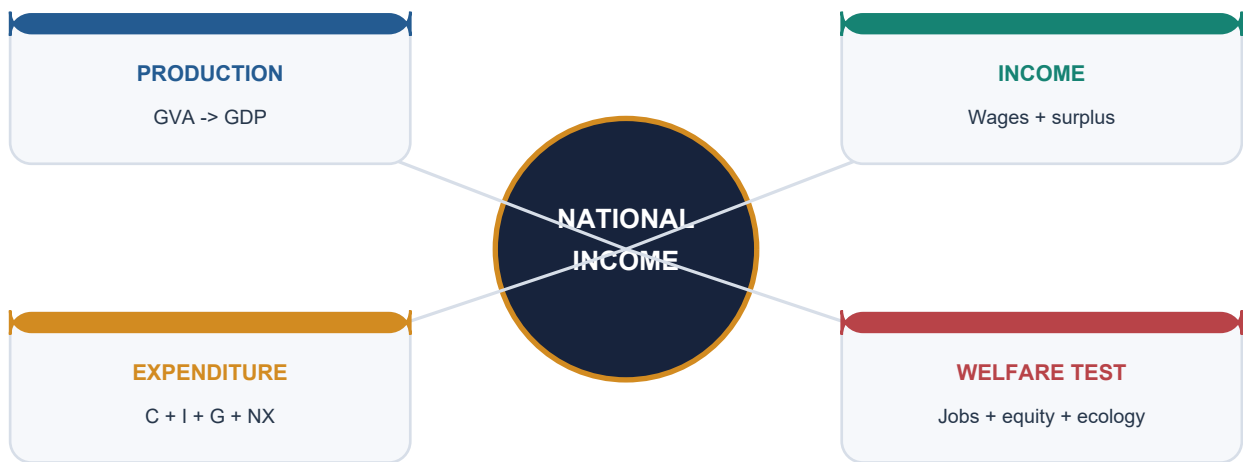


SOLVED PRACTICE WORKBOOK

Polity 35 - NHRC and SHRC - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

PYQ, Practice and Solved Workbook

Verified PYQ routing audit

[FACT] The controlling local routing ledger directly assigns two Mains questions to this NHRC-SHRC owner:

1. **2018 GS-II Q16**—multiplicity of commissions for vulnerable sections and the umbrella Human Rights Commission proposal; 15 marks, 250 words.
2. **2021 GS-II Q12**—structural and practical limitations of Human Rights Commissions and remedies; 15 marks, 250 words.

[FACT] A comprehensive search of the 2018-2023, 2024-2025 and 2026 routing/audit ledgers found no additional direct NHRC-SHRC owner route.

[FACT] The 2023 Prelims Q35 classification question mentions NHRC, but its audited route is to the National-Commissions and Statutory/Regulatory/Quasi-Judicial owners, not directly to this topic. It is reproduced as a cross-link without inventing or labelling an unavailable official key.

Visual 67 - PYQ provenance board

Year/paper	Question	Route status	Key control
2018 GS-II Q16	multiplicity and umbrella commission	direct, cross-cutting owner route	Mains; no objective key
2021 GS-II Q12	HRC limitations and remedies	direct owner route	Mains; no objective key
2023 Prelims Q35	constitutional-body classification including NHRC	related cross-link, not direct route	local ledger says key unavailable; no official letter claimed
2024-2026	no additional direct NHRC-SHRC route found	audited	no question invented

Verified routed PYQ 1 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Verified question: “Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.”

Directive decode: “Argue your case” requires a clear stand, not a neutral list. The answer must distinguish constitutional from statutory commissions before evaluating merger.

Evidence-led model solution

Multiplicity does produce overlap, but merging every vulnerable-section commission into a statutory Human Rights Commission would be constitutionally difficult and functionally unwise. The better course is coordinated specialisation under a strengthened referral architecture.

Case for consolidation: NHRC, NCW, NCM, NCPCR and disability institutions often confront intersecting dignity, discrimination and custodial-governance issues. Section 3(3) of the Protection of Human Rights Act already recognises this overlap by making seven specialised officeholders deemed NHRC members for section 12(b)-(j). Shared intake, HRCNet-style case information and section 36 anti-duplication rules can reduce forum-shopping and inconsistent follow-up. The qualification is that deemed members do not participate in section 12(a) complaint inquiry merely by that status.

Case against a mega-merger: NCSC, NCST and NCBC are constitutional bodies under Articles 338, 338A and 338B. Their constitutional reporting, consultation and group-specific safeguards cannot be absorbed into a statutory NHRC by ordinary amendment. Even among statutory bodies, child rights, gender discrimination, minority safeguards and disability rights demand specialised law, expertise and accessible forums. A very large umbrella may centralise appointments and dilute marginal voices.

Middle path: retain specialised commissions; create a common referral protocol, interoperable case-management, joint thematic inquiries and reasoned transfer rules. Strengthen NHRC's independent investigation and follow-up while

preserving each body's mandate.

Thus, the problem is not specialisation but uncoordinated specialisation. India needs an apex coordination network, not institutional erasure.

Why this earns marks: It takes a position, uses Articles 338-338B and PHRA sections 3(3)/36, addresses both sides, explains mechanism and gives a constitutionally feasible middle path.

Visual 68 - 2018 argument tree

OVERLAP PROBLEM

```
|
+-- merge all? -> simpler intake, common standards
|               BUT constitutional bodies cannot be casually absorbed
|               AND specialist expertise may be diluted
|
+-- retain all unchanged? -> preserves expertise
|                           BUT duplication continues
|
+-- BEST POSITION:
    specialised autonomy + common referral/data/joint-action framework
```

Verified routed PYQ 2 - UPSC GS-II 2021, Q12 - 15 marks, 250 words

Verified question: “Though the Human Rights Commissions have contributed immensely to the protection of human rights in India, yet they have failed to assert themselves against the mighty and powerful. Analyzing their structural and practical limitations, suggest remedial measures.”

Directive decode: The answer must first acknowledge contribution, then separate structural limits from practical limits, and match each limit with a remedy.

Evidence-led model solution

Human Rights Commissions are valuable fact-finding and publicity institutions, but their statutory design and operational dependence weaken remedies against powerful State actors.

Contribution: Section 12 enables suo motu inquiry, court intervention with approval, institution visits and safeguard review; section 13 supplies civil-court evidence powers. In *EEVFAM* (2016), the Supreme Court treated NHRC inquiry as a meaningful accountability route while retaining Article 32 oversight. These tools expose violations and create public records, though they do not themselves complete prosecution.

Structural limits: Section 18 frames compensation and prosecution as recommendations; governments must respond, not automatically comply. Section 36(2)'s one-year bar was treated as jurisdictional in *N.C. Dhoundial*. Section 19 substitutes a Central-government report for ordinary inquiry into armed-forces complaints. SHRCs are limited to State/Concurrent subjects, and section 36 reduces parallel inquiry.

Practical limits: government-provided police investigators can face conflicts when police conduct is examined; short or incomplete membership, uneven SHRC resources, delayed official reports and limited civil-society access weaken capacity. GANHRI's March 2025 SCA report mapped similar concerns to independence, pluralism and open appointments. The recommendation remained challenged and the public listing remains A, so scrutiny must not be misstated as a completed downgrade.

Remedies: create an independent multidisciplinary investigation cadre; require compliance or detailed, time-bound rejection with court escalation; relax the one-year bar for grave/concealed violations; reform section 19 with safeguarded independent fact-finding; publish open selection criteria; ensure pluralism, resources and functioning Human Rights Courts.

The goal is not to turn NHRC into a criminal court, but to convert moral authority into accountable follow-through.

Why this earns marks: It follows the directive, balances contribution and failure, uses sections 12, 13, 18, 19 and 36, adds two cases and current GANHRI evidence, and pairs every diagnosis with a feasible remedy.

Visual 69 - 2021 diagnosis-remedy chain

Limitation	Named evidence	Remedy
recommendations not self-executing	section 18	comply-or-reasoned-reject + escalation
old complaints barred	section 36(2), <i>Dhondial</i>	statutory exceptions for grave/concealed cases
armed-forces inquiry restricted	section 19	independent fact-finding with security safeguards
police/deputation dependence	section 11, GANHRI SCA	independent investigation cadre
pluralism/selection gaps	Paris Principles, SCA 2025	open, participatory and diverse appointments
weak district trial route	sections 30-31	notifications, prosecutors and routing protocols

Cross-linked verified Prelims PYQ - UPSC 2023, Q35

Verified question: Consider the following organisations/bodies in India: (1) National Commission for Backward Classes, (2) National Human Rights Commission, (3) National Law Commission, and (4) National Consumer Disputes Redressal Commission. How many of the above are constitutional bodies? Options: only one; only two; only three; all four.

Key-status control: The audited local ledger states that the official key is unavailable locally. No option letter is presented as an official or inferred UPSC key.

Doctrinal learning: Article 338B creates NCBC; the PHRA creates NHRC; the Law Commission is executive; and the consumer commission is statutory. The question tests source classification, not whether a body performs important public functions.

Visual 70 - Prelims source test

ASK FIRST: "Where is the body created?"
Constitution article -> constitutional
Act of legislature -> statutory
executive order -> executive
court judgment alone does not change the creating source

Original MCQs - 36 questions

Q1. Which description most accurately captures the NHRC?

A. A statutory commission constituted under the Protection of Human Rights Act, 1993 B. A constitutional commission under Article 338 C. A criminal court under the Code of Criminal Procedure D. An executive committee created only by Cabinet resolution

Answer: A.

Explanation: [FACT] Section 3 of the PHRA requires the Central Government to constitute the NHRC. [LIMIT] Statutory inquiry powers do not make it a court.

Q2. Section 2(d) links human rights to life, liberty, equality and dignity that are:

A. mentioned in any international publication B. constitutionally guaranteed or embodied in the statutory International Covenants and enforceable by courts in India C. recognised by any NGO D. confined to Fundamental Rights available only to citizens

Answer: B.

Explanation: [FACT] The enforceability language and defined International Covenants are essential parts of section 2(d).

Q3. "International Covenants" under section 2(f) expressly includes:

A. only the Universal Declaration of Human Rights B. every treaty signed by any ministry C. ICCPR, ICESCR and another UNGA covenant/convention only if specified by Central notification D. all judgments of international courts

Answer: C.

Explanation: [FACT] ICCPR and ICESCR are named. Other UNGA instruments need the statutory notification gate.

Q4. The seven deemed members of NHRC participate by that status in:

A. only section 12(a) complaint inquiry B. removal proceedings C. the presidential selection committee D. functions under section 12(b) to (j), not section 12(a)

Answer: D.

Explanation: [FACT] Section 3(3) expressly limits deemed membership to section 12(b)-(j).

Q5. Who is eligible to be NHRC Chairperson under current law?

A. A person who has been CJI or a Judge of the Supreme Court B. Only a serving CJI C. Any serving High Court judge D. Only a former Union Home Secretary

Answer: A.

Explanation: [FACT] The 2019 Amendment widened eligibility beyond a former CJI to a former SC judge.

Q6. Which office is NOT part of the NHRC selection committee under section 4?

A. Lok Sabha Speaker B. Chief Justice of India C. Union Home Minister D. Deputy Chairman of Rajya Sabha

Answer: B.

Explanation: [FACT] CJI consultation is required for specified sitting-judge appointments, but the CJI is not a committee member.

Q7. The ordinary NHRC member's term is:

A. five years with no age limit B. six years or age sixty-five C. three years, reappointment-eligible, with an age ceiling of seventy D. until the pleasure of the President

Answer: C.

Explanation: [FACT] Section 6 was amended in 2019. [LIMIT] The current Act does not state a fixed maximum number of reappointments.

Q8. Which ground permits direct removal by the President without the proved-misbehaviour Supreme Court inquiry track?

A. disagreement with a recommendation B. criticism by a State government C. absence from one meeting D. adjudged insolvency

Answer: D.

Explanation: [FACT] Insolvency is one of section 5(3)'s direct statutory grounds.

Q9. SHRC Chairperson and members are appointed by:

A. the Governor after the statutory committee's recommendation B. the President after Parliament's recommendation C. the Chief Justice of the High Court D. the State Cabinet without warrant

Answer: A.

Explanation: [FACT] Section 22 vests appointment in the Governor by warrant.

Q10. Who removes an SHRC Chairperson or member under the PHRA?

A. Governor B. President C. Chief Minister D. High Court Chief Justice

Answer: B.

Explanation: [FACT] Resignation goes to the Governor, but removal power belongs to the President.

Q11. Which section 12 function is omitted when applied to SHRCs by section 29?

A. jail/institution visit B. research C. treaty and international-instrument study under clause (f) D. court intervention

Answer: C.

Explanation: [FACT] Section 29 expressly omits section 12(f) for State Commissions.

Q12. An SHRC may inquire only into matters relatable to:

A. Union List only B. foreign affairs only C. residuary powers only D. State List and Concurrent List entries

Answer: D.

Explanation: [FACT] Section 21(5) supplies the federal subject-matter boundary.

Q13. Which is a civil-court power specifically granted for inquiry?

A. Summoning witnesses and examining them on oath B. Passing a criminal sentence C. Striking down legislation D. Executing compensation as a decree

Answer: A.

Explanation: [FACT] Section 13 grants evidence-gathering powers, not general judicial jurisdiction.

Q14. Under section 14, use of a government investigation agency requires:

A. approval by every complainant B. concurrence of the concerned Central or State Government C. a constitutional amendment D. a jury verdict

Answer: B.

Explanation: [FACT] The agency then acts under Commission direction and control; the Commission checks its report.

Q15. Section 16 is most directly associated with:

A. annual budgeting B. accreditation C. hearing a person whose conduct or reputation may be prejudicially affected D. armed-forces reporting

Answer: C.

Explanation: [FACT] It is the statutory natural-justice safeguard.

Q16. In an ordinary section 18 case, the default period for government comments is:

A. seven days B. fifteen days C. three months D. one month, or further time allowed

Answer: D.

Explanation: [FACT] Section 18(e) sets one month; section 19 separately uses three months for armed-forces cases.

Q17. “Armed forces” under the Act includes:

A. naval, military and air forces and other armed forces of the Union B. every State police constable automatically C. private security agencies D. prison staff only

Answer: A.

Explanation: [FACT] Section 2(a) defines the category. State police should not be casually placed under section 19.

Q18. The Central Government normally informs NHRC of action on an armed-forces recommendation within:

A. one month B. three months, or further time allowed C. six months without extension D. one year

Answer: B.

Explanation: [FACT] Section 19(2) creates the distinct timetable.

Q19. Which case treats section 36(2) as a jurisdictional bar?

A. *Kesavananda Bharati* B. *S.R. Bommai* C. *N.C. Dhoundial v. Union of India* D. *Indra Sawhney*

Answer: C.

Explanation: [FACT] The Court rejected NHRC's generic continuing-wrong theory on the facts.

Q20. A Human Rights Court is specified by:

A. NHRC alone B. Parliament for the whole country through one resolution C. the District Magistrate D. the State Government, with concurrence of the High Court Chief Justice, by notifying a Court of Session

Answer: D.

Explanation: [FACT] Section 30 uses “may” and includes an existing-special-court proviso.

Q21. A specially appointed advocate under section 31 must have practised for at least:

A. seven years B. five years C. ten years D. twelve years

Answer: A.

Explanation: [FACT] The State may instead specify a Public Prosecutor.

Q22. Which is a core Paris-Principles requirement?

A. exclusive judicial membership B. pluralist composition and adequate independent resources C. control by the Home Ministry D. secrecy of reports

Answer: B.

Explanation: [FACT] OHCHR's official text emphasises broad mandate, pluralism, infrastructure, funding and operational freedom.

Q23. The safest current statement on India's GANHRI status is:

A. India was finally downgraded in March 2025 B. India was permanently cleared in April 2026 C. the SCA recommended B in 2025, India challenged it, and the public membership page still lists A as of the control date D. India has never been reviewed

Answer: C.

Explanation: [CURRENT] This preserves the official recommendation, challenge and current public listing without inventing a final decision.

Q24. N.C. Dhoundial rejected the proposition that:

A. NHRC is statutory B. courts can review NHRC C. illegal detention can violate rights D. every completed violation remains a continuing wrong until reparation

Answer: D.

Explanation: [FACT] The Court measured the bar from the alleged act and treated the completed detention accordingly.

Q25. The Paramjit Kaur exception applies when:

A. NHRC acts as an expert body pursuant to Supreme Court Article 32 directions B. any complainant labels a case grave C. a State waives limitation D. an NGO requests it

Answer: A.

Explanation: [FACT] *Dhoundial* authoritatively explains this constitutional-assignment exception.

Q26. EEVFAM is safely used for the proposition that:

A. every encounter is unlawful B. excessive-force deaths require thorough inquiry and Article 32 oversight remains available C. NHRC recommendations became universally binding D. AFSPA eliminates judicial review

Answer: B.

Explanation: [FACT] The Court kept the binding-guideline question open in the cited passage.

Q27. A purely private dispute is most likely to enter section 12(a) jurisdiction when:

A. it is commercially important B. social media discusses it C. a public servant is alleged to have violated/abetted rights or negligently failed to prevent the violation D. both parties consent to arbitration

Answer: C.

Explanation: [FACT] The public-servant nexus separates Commission jurisdiction from a general private-dispute forum.

Q28. Which output belongs to a Human Rights Court rather than NHRC?

A. safeguard review B. human-rights literacy C. recommendation of compensation D. criminal judgment after trial within its lawful jurisdiction

Answer: D.

Explanation: [FACT] Inquiry/recommendation and criminal adjudication are institutionally distinct.

Q29. The strongest constitutional objection to merging all commissions into NHRC is:

A. NCSC, NCST and NCBC have constitutional foundations that a statutory merger cannot erase by ordinary law B. no commissions may ever cooperate C. NHRC has no human-rights mandate D. every statutory body is superior to a constitutional body

Answer: A.

Explanation: [ANALYSIS] Coordination is feasible; absorption of constitutional cores requires constitutional change.

Q30. An NHRC annual report is laid before:

A. only the Supreme Court B. Parliament or the concerned State Legislature as applicable, with an action memorandum and reasons for non-acceptance C. GANHRI only D. no public body

Answer: B.

Explanation: [FACT] Section 20 creates the legislative reporting route.

Q31. Which statement reflects current section 12(c)?

A. The Commission can visit only after a State Cabinet resolution in each case. B. The Commission may take over the institution's administration. C. The Commission may visit the specified State-controlled jail/institution despite other law, study conditions and recommend changes. D. It may run the institution directly.

Answer: C.

Explanation: [FACT] Current section 12(c) authorises the visit and recommendation function; it does not transfer administration to the Commission.

Q32. How many deemed members are listed in section 3(3)?

A. three B. five C. six D. seven

Answer: D.

Explanation: [FACT] The seven are NCBC, NCM, NCPCR, NCSC, NCST, NCW and Chief Commissioner for PWD.

Q33. Section 13 permits NHRC to transfer a complaint to an SHRC when:

A. the complaint arises from that State and the SHRC has jurisdiction B. the complainant always demands it C. the matter concerns only foreign affairs D. the one-year bar has expired

Answer: A.

Explanation: [FACT] Sections 13(6)-(7) govern transfer and subsequent treatment as an initially filed SHRC complaint.

Q34. Human-rights functions relating to the Union Territory of Delhi are dealt with by:

A. a mandatory Delhi SHRC under section 21 B. NHRC C. NITI Aayog D. the Finance Commission

Answer: B.

Explanation: [FACT] Section 21(8) assigns Delhi's functions to NHRC.

Q35. After leaving NHRC office, a Chairperson or member is:

A. automatically appointed Governor B. eligible for any government job without restriction C. ineligible for further employment under Union or State government D. required to join an SHRC

Answer: C.

Explanation: [FACT] Section 6(3) supplies this post-tenure safeguard.

Q36. Which is the most balanced assessment?

A. NHRC is useless because recommendations are advisory. B. NHRC is a court because it summons witnesses. C. A-status proves there are no independence concerns. D. NHRC combines strong fact-finding and publicity tools with weak compulsory remedy and operational-independence constraints.

Answer: D.

Explanation: [ANALYSIS] This captures both capacity and statutory/practical ceilings.

Remedial MCQs - 12 questions

R1. A student writes, “NHRC is a constitutional body because it protects Fundamental Rights.”

The best correction is:

A. Function does not determine source; NHRC is statutory under the PHRA, 1993. B. Every rights body is constitutional. C. NHRC is a High Court division. D. NHRC is a private association.

Answer: A.

Explanation: [FACT] Classify an institution by its creating source, not by the importance of its work.

R2. Which statement about deemed NHRC members is correct?

A. They replace the ordinary members. B. They are deemed members for section 12(b)-(j), not the section 12(a) inquiry function. C. They are appointed by the Chief Justice of India. D. They may remove the Chairperson.

Answer: B.

Explanation: [FACT] This narrow participation rule is a frequent Prelims trap.

R3. A vacancy on the NHRC selection committee:

A. always makes every appointment void B. converts appointment into a judicial nomination C. does not by itself invalidate the appointment under section 4(2) D. transfers appointment power to the Governor

Answer: C.

Explanation: [FACT] The vacancy-saving clause does not bar judicial review for other legal defects.

R4. Which sentence must be deleted from an SHRC answer?

A. The Governor appoints. B. The President removes. C. The Governor receives resignation. D. The Governor removes for proved misbehaviour after a High Court inquiry.

Answer: D.

Explanation: [FACT] Removal is by the President; proved misbehaviour/incapacity uses a Supreme Court inquiry.

R5. The post-2019 tenure rule is:

A. three years, reappointment eligible, subject to the age-seventy ceiling B. five years with no reappointment C. life tenure D. pleasure tenure

Answer: A.

Explanation: [FACT] The amendment reduced the ordinary term and altered the reappointment wording.

R6. Which is an NHRC-SHRC difference created by section 29?

A. SHRC cannot conduct research. B. SHRC does not receive section 12(f)'s treaty/instrument-study function. C. SHRC has no civil-court powers. D. SHRC cannot visit institutions.

Answer: B.

Explanation: [FACT] Sections 12, 13, 14 and 18 otherwise apply with listed modifications.

R7. “Government must accept an NHRC recommendation within one month” is wrong because:

A. no response is required B. only Parliament can read the report C. section 18 requires comments/action taken or proposed, not automatic acceptance D. recommendations expire in one month

Answer: C.

Explanation: [FACT] The one-month period concerns response. Binding compliance is not the present rule.

R8. Which pairing is correct?

A. ordinary response—three months; armed forces—one month B. both—one year C. both—seven days D. ordinary response—one month; armed-forces response—three months

Answer: D.

Explanation: [FACT] Further time may be allowed under each relevant provision.

R9. A complaint about a completed act from several years earlier is ordinarily barred by:

A. section 36(2) B. section 3(3) C. Article 280 D. section 31

Answer: A.

Explanation: [FACT] *Dhoundial* confirms the jurisdictional character of the one-year bar.

R10. Which body can return a criminal judgment after trial?

A. NHRC acting under section 18 B. a competent Human Rights Court C. GANHRI SCA D. NCW as deemed member

Answer: B.

Explanation: [FACT] The Commission recommends; the court adjudicates.

R11. The current accreditation statement should mention:

A. only the word A, without context B. a final B downgrade in 2025 C. A public listing together with the challenged 2025 SCA downgrade recommendation and absence of a published final downgrade located by the control date D. that accreditation is domestic law

Answer: C.

Explanation: [CURRENT] Precise status language prevents both complacency and exaggeration.

R12. Which reform best answers both independence and due-process concerns?

A. abolish hearings B. allow every recommendation to be unappealable C. keep all appointments secret D. create independent investigation capacity and require reasoned follow-up with judicial escalation

Answer: D.

Explanation: [ANALYSIS] The design improves evidence independence and remedy accountability without pretending NHRC is a criminal court.

Visual 71 - MCQ coverage matrix

Domain	Original MCQs	Remedials	Rotation
source and definition	Q1-Q4	R1-R2	continuous A-B-C-D
composition/appointment/removal	Q5-Q12	R3-R6	continuous
powers/procedure/remedies	Q13-Q20	R7-R10	continuous
Paris/cases/comparison/current	Q21-Q36	R11-R12	continuous
total	36	12	48 markers; A-B-C-D repeated 12 times

Original Solved Mains Practice - 8 questions

Original Mains 1 - 10 marks, 150 words

Question: Explain the statutory meaning of “human rights” under the Protection of Human Rights Act, 1993. Why is the enforceability condition important?

Directive decode: “Explain” needs the exact definition, its components and the consequence of the enforceability filter.

Model solution

Section 2(d) of the Protection of Human Rights Act defines human rights as rights relating to **life, liberty, equality and dignity** that are guaranteed by the Constitution or embodied in the “International Covenants” and enforceable by courts in India.

The first limb connects the Commission's mandate to India's constitutional rights order, especially equality and the judicially developed dignity content of Article 21. The second limb is not an open door to every international instrument. Section 2(f) expressly names the ICCPR and ICESCR and includes another UN General Assembly covenant or convention only when the Central Government specifies it by notification.

The enforceability condition is important for three reasons. First, it anchors Commission inquiry in the domestic legal system. Second, it prevents soft-law declarations or unincorporated instruments from automatically becoming enforceable merely through Commission practice. Third, it aligns the Commission's recommendations with remedies that Indian courts can legally recognise.

However, the condition should not be read as making NHRC a court. It may study broader treaties under section 12(f), promote standards and recommend reform, while coercive enforcement remains with competent authorities and courts.

Why this earns marks: It quotes the four statutory values, names sections 2(d)/2(f), distinguishes treaties from enforceable law and ends with the Commission-court boundary.

Visual 72 - 10-marker spine: definition

exact words -> International Covenants gate -> enforceability purpose
-> wider promotional function -> NHRC is not a court

Original Mains 2 - 10 marks, 150 words

Question: Distinguish the NHRC from an SHRC with reference to composition, appointment, removal and jurisdiction.

Directive decode: Use common comparison criteria; avoid two disconnected descriptions.

Model solution

Both NHRC and SHRC are statutory commissions under the Protection of Human Rights Act, 1993, but their design reflects national and State roles.

Composition: NHRC has a former CJI/SC-judge Chairperson, two judicial members and three human-rights experts, at least one a woman, plus seven deemed members for section 12(b)-(j). SHRC has a former High Court Chief Justice/judge Chairperson, one judicial member through the High Court/District Judge route and one expert, without that deemed-member layer.

Appointment: The President appoints NHRC members on a committee led by the Prime Minister. The Governor appoints SHRC members on a committee led by the Chief Minister, with Legislative Council participation in bicameral States.

Removal: Both are removed by the President. Proved misbehaviour/incapacity requires Supreme Court inquiry. The SHRC trap is therefore: Governor appoints and receives resignation, but President removes.

Jurisdiction: NHRC has the national mandate, subject to statutory bars. SHRC is confined by section 21(5) to State and Concurrent List matters and cannot duplicate an inquiry already before NHRC/another commission. Section 29

also omits treaty study under section 12(f) for SHRCs.

Thus, powers are broadly parallel, but composition and federal reach differ.

Why this earns marks: It compares on four demanded heads, cites sections 21(5)/29 and includes the high-yield appointment-removal asymmetry.

Visual 73 - 10-marker comparison grid

Head	NHRC	SHRC
appoint	President	Governor
remove	President	President
jurisdiction	national statutory mandate	State/Concurrent field
treaty study	yes	omitted under section 29

Original Mains 3 - 10 marks, 150 words

Question: “Civil-court powers do not make the NHRC a civil court.” Explain.

Directive decode: Identify the powers, the limited deeming provisions and the remedy ceiling.

Model solution

Section 13 gives NHRC important civil-court powers while inquiring into complaints: summoning witnesses, examination on oath, requiring documents, receiving affidavits, requisitioning public records and issuing commissions. Proceedings also receive specified judicial-proceeding status, and limited civil-court deeming enables action concerning offences committed in the Commission's presence.

These powers make evidence gathering credible. For example, an executive authority cannot defeat inquiry merely by refusing documents or witness attendance. Section 16's hearing safeguard also requires fairness where conduct or reputation may be prejudiced.

Yet legal character follows the whole statute, not one procedural clause. Under section 18, NHRC **recommends** compensation, prosecution or interim relief and may approach the Supreme Court/High Court. It does not execute a money decree, convict an accused or replace criminal trial. A Human Rights Court under sections 30-31, by contrast, is a notified Sessions Court capable of adjudication within criminal law.

Therefore, NHRC is a statutory inquiry-and-recommendation body with selected court-like powers, not a court with plenary adjudicative jurisdiction.

Why this earns marks: It names the section 13 toolkit, explains its purpose, contrasts section 18 and Human Rights Courts, and reaches a legally precise conclusion.

Visual 74 - Power-character test

court-like evidence powers != court status
read section 13 together with section 18 outputs

Original Mains 4 - 15 marks, 250 words

Question: Examine the NHRC's institutional design against the Paris Principles. Refer to the current GANHRI accreditation scrutiny.

Directive decode: “Examine” requires supporting features, gaps, current evidence and a qualified verdict.

Model solution

The Paris Principles assess whether a national institution has a broad legal mandate, pluralist composition, independence, adequate resources, accessible methods and freedom to investigate and publicise. The NHRC's design partly satisfies each head but contains visible tensions.

Supporting design: The PHRA provides a parliamentary mandate covering complaints, jail visits, safeguard review, research, literacy and NGO encouragement. Sections 13-14 create evidence and investigation machinery; fixed terms and President/Supreme Court removal procedure protect tenure; sections 18 and 20 require publication and legislative reporting. These features give NHRC visibility and institutional continuity.

Independence and pluralism gaps: Section 11 requires government to make senior civil-service and police/investigative staff available. Where allegations concern police, secondment can create a real or perceived conflict despite Commission control under section 14. The expert-member category and one-woman minimum permit breadth but do not guarantee representation of India's social forces. The selection committee is high-level and bipartisan in formal composition, yet the Act does not require public advertisement, consultation or civil-society participation.

Mandate/access gaps: Section 36(2)'s one-year bar and section 19's armed-forces report route narrow effective protection. Non-binding recommendations make follow-up dependent on governments and courts.

Current control: GANHRI's March 2025 SCA recommended B status, citing investigation, Secretary-General, pluralism, selection, public response and civil-society concerns. India challenged the recommendation; GANHRI's public membership page still lists A as of 19 August 2026. The 2026 SCA report's silence is not a merits clearance.

Reform should open appointments, diversify membership, secure independent staff/investigation, protect funding and require reasoned, time-bound follow-up.

Why this earns marks: It applies each Paris head to named statutory provisions, uses the exact current accreditation qualification and proposes matched reforms.

Visual 75 - Paris gap-to-reform map

Paris head	Gap	Reform
pluralism	minimum representation, not full diversity	open criteria and broader representation
independence	executive-linked staff	autonomous recruitment/investigation
resources	grant dependence	predictable protected funding
accessibility	time and subject bars	calibrated exceptions and outreach
effectiveness	non-binding follow-up	reasoned compliance/escalation

Original Mains 5 - 15 marks, 250 words

Question: Is the one-year limitation under section 36(2) compatible with effective human-rights protection? Analyse with case law and propose a balanced reform.

Directive decode: State current law, explain its rationale and harm, use *Dhondial*, then design a legally workable reform.

Model solution

Section 36(2) bars NHRC or an SHRC from inquiring more than one year after the alleged violative act. It supplies finality and protects an inquiry body from stale evidence, but its rigidity can exclude the persons most unable to complain quickly.

Current legal position: In *N.C. Dhondial v. Union of India* (2003), a complaint concerned detention that had ended years earlier. The Supreme Court held that NHRC, as a creature of statute, cannot exceed its jurisdiction; section 36(2) is a jurisdictional embargo. The Court rejected the claim that every violation continues until reparation, because that would make the provision a dead letter. It also clarified that *Paramjit Kaur* was different: NHRC there acted as the Supreme Court's Article 32 expert body.

Case for the limit: timely complaints preserve records, witness memory and administrative certainty. NHRC is only one remedy; Articles 32/226, criminal law and other statutory forums may remain available.

Case against rigidity: custodial abuse, trafficking, disability, child abuse, remote geography or official concealment may delay knowledge and access. A uniform bar can therefore reward concealment and penalise vulnerability. Continuing or repeated acts also require fact-sensitive analysis rather than an automatic completed-act label.

Balanced reform: retain a normal one-year rule but authorise a reasoned condonation mechanism for grave violations, concealed facts, continuing acts, disability/minority, childhood or circumstances beyond the victim's control. Require recorded reasons, an outer safeguard where appropriate and judicial review. Preserve the *Paramjit Kaur* constitutional-assignment exception.

As of 19 August 2026, this remains a reform proposal; section 36(2) still says one year.

Why this earns marks: It accurately states *Dhondial*, balances evidence/finality with access, distinguishes constitutional assignment and labels reform as prospective.

Visual 76 - Limitation balance

FINALITY + FRESH EVIDENCE <----> ACCESS + CONCEALED/GRAVE VIOLATIONS
balanced by reasoned condonation

Original Mains 6 - 15 marks, 250 words

Question: Critically analyse the special procedure for complaints against the armed forces under section 19 of the Protection of Human Rights Act.

Directive decode: Explain the exact procedure, evaluate both rationale and accountability cost, and propose safeguarded reform.

Model solution

Section 19 creates a special, narrower route for allegations against members of the armed forces, defined to include naval, military, air and other Union armed forces.

Mechanism: NHRC may act suo motu or on petition, but instead of ordinary direct inquiry it seeks a report from the Central Government. After receiving it, NHRC may close the complaint or make recommendations. The Centre reports action within three months or further time allowed; NHRC publishes the report, recommendation and action and supplies it to the petitioner.

Rationale: operations may involve classified intelligence, chain-of-command evidence and national-security risks. A central report can ensure access to operational records and preserve specialised accountability processes.

Accountability cost: the alleged institutional side controls the first factual narrative. That weakens independence and victim confidence, particularly because section 19 displaces the ordinary evidence route. Recommendations remain non-binding. *EEVFAM* (2016) demonstrates why constitutional oversight matters: the Supreme Court reiterated that excessive or retaliatory force is impermissible even in an AFSPA disturbed area and that death allegations require thorough inquiry. It did not treat security operations as a rights-free zone.

Reform: permit an independent NHRC-led or court-supervised fact-finding team with security-cleared members; use in-camera handling and redaction for genuinely sensitive material; require preservation of evidence, victim participation, reasoned public outcomes and judicial escalation for non-cooperation. Operational secrecy should be tailored, not total.

Section 19 should protect legitimate security information without making executive self-reporting the ceiling of accountability.

Why this earns marks: It reproduces the statutory steps and timetable, connects *EEVFAM* to accountability, recognises security concerns and designs proportional safeguards.

Visual 77 - Security-accountability design

Legitimate need	Safeguard
classified information	security-cleared inquiry, redaction/in-camera review
operational urgency	prompt evidence preservation
command responsibility	records and chain-of-command examination
victim confidence	independent participation and reasoned outcome

Original Mains 7 - 20 marks, 300 words

Question: Evaluate whether Human Rights Commissions in India possess sufficient independence and enforcement capacity. Suggest a phased reform programme.

Directive decode: Evaluate design and practice, distinguish independence from enforcement, and prioritise reforms.

Model solution

Human Rights Commissions possess meaningful investigative autonomy and public authority, but neither full operational independence nor sufficient compulsory enforcement.

Institutional independence: The PHRA creates fixed eligibility, terms and removal safeguards. NHRC removal for proved misbehaviour/incapacity requires a Supreme Court inquiry, and SHRC members are removed by the President rather than the State executive. These features protect tenure. Yet section 11 makes the Central Government provide a Secretary-rank officer and police/investigative staff; section 27 creates a similar State arrangement. When police are accused, dependence on police personnel creates a conflict risk. Closed selection procedures and limited statutory pluralism further affect perceived independence. GANHRI's 2025 SCA scrutiny provides named external evidence, although the recommendation remains challenged and the public listing remains A.

Enforcement capacity: Sections 13-14 provide strong fact-finding powers. Section 18 can recommend compensation, prosecution, interim relief and court action; reports are published and laid before legislatures. This is more than mere advice. However, a recommendation is not a decree, section 36(2) excludes old complaints and section 19 restricts armed-forces inquiry. Uneven SHRC staffing and government delays compound the statutory ceiling.

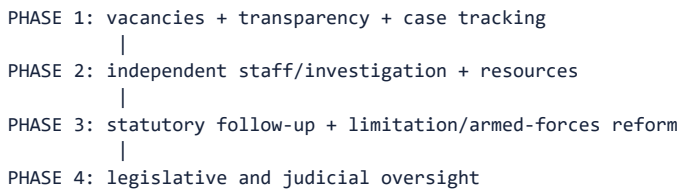
Phased reform:

1. **Immediate administrative phase:** fill vacancies through published calendars; digitise referral and track action-taken reports; train staff and Special Public Prosecutors; publish reasons for delay/non-acceptance.
2. **Institutional phase:** create independent multidisciplinary investigation cadres, direct recruitment and protected budgets; establish civil-society advisory channels; strengthen field access and witness/victim support.
3. **Legislative phase:** create comply-or-reasoned-reject duties with court escalation; add calibrated section 36 condonation; amend section 19 for independent fact finding; make appointments open and pluralist.
4. **Judicial/legislative oversight:** regular report laying, committee scrutiny and reviewable reasons.

The commissions should remain expert rights bodies rather than criminal courts, but their evidence must trigger a reliable remedy chain. Independence without follow-up is symbolic; enforcement without due process is unsafe.

Why this earns marks: It separates two evaluative dimensions, uses sections 11, 13, 18, 19, 27 and 36, integrates current GANHRI control, and sequences feasible reforms.

Visual 78 - Phased reform staircase



Original Mains 8 - 20 marks, 300 words

Question: Human Rights Courts remain the missing enforcement link in India's commission-centred rights architecture. Discuss this claim and suggest how commissions, courts and specialised bodies should coordinate.

Directive decode: Explain the court provisions, why the link is incomplete, and design coordination without institutional merger.

Model solution

The PHRA separates fact-finding from adjudication. NHRC/SHRC inquire and recommend; sections 30-31 envisage Sessions Courts and Special Public Prosecutors for speedy trial. Human Rights Courts could therefore connect Commission findings to criminal accountability, but the statutory bridge is incomplete.

Legal design: A State Government may, with concurrence of the High Court Chief Justice, notify a Court of Session for each district. Existing special courts are protected from duplication. For every notified court, the State specifies a Public Prosecutor or appoints an advocate with at least seven years' practice.

Why the link is weak: The PHRA does not create a comprehensive catalogue of "human-rights offences," an automatic transfer mechanism from Commission inquiry to prosecution, or a separate procedure overriding specialised criminal laws. A notified Sessions Court may remain only a label unless police register and investigate an offence, prosecutors are trained, victims receive support and case allocation is clear. Unsupported national counts should therefore be avoided.

Coordination architecture:

- NHRC/SHRC should produce legally structured records, preserve evidence and identify the competent offence/investigating authority, while respecting section 16 hearing rights.
- Police/SITs should conduct criminal investigation independently of the Commission's recommendatory finding.
- Prosecutors should assess admissible evidence and give reasons where prosecution is declined.
- High Courts should oversee notifications, case allocation and delay through administrative and Article 226 powers.
- NCSC, NCST, NCBC, NCW, NCM, NCPDR and disability institutions should use referral protocols and joint thematic action, not lose specialist mandates in one mega-body.
- A shared case identifier can enforce section 36 anti-duplication while protecting data and victim choice.

Reform: States should notify functional courts where needed, designate trained prosecutors, publish routing rules, create victim/witness services and report outcomes without compromising privacy.

Human Rights Courts are potentially an enforcement link, but no court can repair weak investigation or vague case routing. The solution is a chain of lawful specialisation, not institutional collapse.

Why this earns marks: It explains sections 30-31, identifies the legal/operational gap, integrates criminal procedure and specialised commissions, and offers a non-merger coordination model.

Visual 79 - Rights-enforcement chain

COMPLAINT

- > NHRC/SHRC fact finding
- > police/SIT criminal investigation
- > prosecutor decision
- > notified Sessions/Human Rights Court trial
- > appeal/judicial review

SPECIALISED COMMISSIONS feed expertise and referrals across the chain.

Visual 80 - Practice inventory

Component	Count	Control
direct verified routed Mains PYQs	2	exact local official-paper wording
related verified Prelims cross-link	1	no unavailable official key claimed
original MCQs	36	explanations; A-B-C-D rotation
remedial MCQs	12	explanations; continuous rotation
objective answer markers	48	exactly 12 A, 12 B, 12 C, 12 D
original solved Mains	8	3 x 10, 3 x 15, 2 x 20 marks
solved routed Mains	2	examiner-grade evidence-led models